

26STCV07594 26STCV07594

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV07594

JOHN

PATERNO vs JOY FAIRBANKS, et al.

July

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANTS' DEMURRER TO COMPLAINT.

RULING:

The Court overrules the
Demurrer.

Defendants may serve and
file an Answer to the Complaint not later than on August 31, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On March 9, 2026, JOHN
PATERNO and PATERNO HEATING & AIR CONDITIONING (Plaintiffs) filed a
Complaint against JOY FAIRBANKS and ANDREW FAIRBANKS (Defendants),
self-represented litigants.

On March 19, 2026,
Plaintiff filed a First Amended Complaint (FAC), listing Causes of Action for:

(1)

FRAUD AND DECEIT;

(2)

NEGLIGENT MISREPRESENTATION;

(3)

CONVERSION;

(4)

BREACH OF CONTRACT;

(5)

UNJUST ENRICHMENT / RESTITUTION;

(6)

TRESPASS TO CHATTELS / WRONGFUL RETENTION OF PERSONAL PROPERTY; AND

(7)

DECLARATORY RELIEF.

Plaintiffs allege that Defendants retain Plaintiffs' installed HVAC system even though they recovered the full contract price paid (\$16,300.00), through enforcement of Judgments of two Small Claims Court actions, fraudulently obtained where Defendant JOY FAIRBANKS told Plaintiff JOHN PATERNO that she had dismissed the cases and that he need not appear for trial and provided an altered Order to that effect.

On April 8, 2026, Defendants filed the Demurrer, emphasizing that res judicata and collateral estoppel apply to the Judgments, and collateral attacks are not allowed. They additionally argue the insufficiency of allegations as to elements of each alleged Cause of Action.

Plaintiffs oppose, based on arguments such as that there is no bar where extrinsic fraud is a cognizable basis to collaterally attack the Judgments. Alternatively, they request leave to amend.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (Cantu v. Resolution Trust Corp. (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., State v. The Superior Court (2001) 87 Cal.App.4th 1409, 1411.) “Even as against a special demurrer, a plaintiff is required only to “set forth in his complaint the essential facts of his case with reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent of his cause of action.” ’ ’ (Elder v. Pac. Bell Tel. Co. (2012) 205 Cal.App.4th 841, 858.)

“[A] demurrer based on res judicata is properly sustained only if the pleadings and judicially noticed facts conclusively establish the elements of the doctrine.” (Planning & Conservation League v. Castaic Lake Water Agency (2009) 180 Cal.App.4th 210, 231.) Where pleadings and judicially noticed facts raise conflicting inferences as to the determination of privity, the factual conflict cannot be resolved via demurrer.

(Ibid., p. 232.) “If all of the facts necessary to show that an action is barred by res judicata are within the complaint or subject to judicial notice, a trial court may properly sustain a general demurrer.” (Frommshagen v. Bd. of Supervisors (1987) 197 Cal.App.3d 1292, 1299.) A denial of a motion made under Code of Civil Procedure section 473 is not res judicata as to a complaint in equity being directly attacked. (Sternbeck v. Buck (1957) 148 Cal.App.2d 829, 831.)

“Evidence Code section 456 provides the trial court must indicate for the record if it denies a request for judicial notice.” (Aronoff v. Martinez-Senftner (2006) 136 Cal.App.4th 910, 919 [“The record contains no indication the request for judicial notice was denied. We conclude the trial court took judicial notice of the requested matter, particularly in light of its decision.”].) Judicial notice requests may be denied based upon lack of relevance. (Kashian v. Harriman (2002) 98 Cal.App.4th 892, 901, fn.3; Ragland v. U.S. Bank National Assn. (2012) 209 Cal.App.4th 182, 194; Barratt Amer., Inc. v. City of San Diego (2004) 117 Cal.App.4th 809, 812, fn. 2 [court denied judicial notice of city resolutions as being irrelevant to question involved in demurrer].) “[J]udicial notice of matters upon demurrer will be dispositive only in those instances where there is not or cannot be a factual dispute concerning that which is sought to be judicially noticed.” (Unruh-Haxton v. Regents of Univ. of Cal. (2008) 162 Cal.App.4th 343, 365.)

III.

ANALYSIS

Defendants insist, at length, that judicial notice of court, post-judgment, and contractors licensing records reveals no basis for the Causes of Action. They contend the Judgments are based on the merits and evidence, failures to timely appeal, court-authorized enforcement, partial satisfaction of the judgments, and an unsuccessful motion for relief. Defendants further contend that whether Plaintiffs can prove extrinsic fraud preventing trial attendance is not in issue here and is negated by judicial notice (Reply, p. 11).

Plaintiffs make points including the following:

1.

Small Claims judgments carry no preclusive effect as to defendants.

2.

The FAC adequately alleges that the Judgments were procured by extrinsic fraud.

3.

Ongoing conduct occurred after the Judgments, including Defendants retention of HVAC equipment after demands for return and an unsupportable bond claim.

4.

The denial of the Plaintiffs' Motion for Relief under Code of Civil Procedure section 473, was based on untimeliness and thus is not any bar on the merits.

5.

Judicial notice is unauthorized to test the truthfulness of alleged extrinsic fraud.

6.

All claim elements are sufficiently alleged.

7.

The Litigation Privilege is inapposite as to alleged extrinsic fraud.

"A small claims plaintiff

is collaterally estopped from relitigating the same issue in superior court where the record is sufficiently clear to determine that the issue was litigated and decided against plaintiff in the small claims action. [Citation.] In addition, it is well-settled that the claim preclusion aspect of the doctrine of res judicata applies to small claims judgments. (Bailey v. Brewer (2011) 197 Cal.App.4th 781, 791.) (Underscore added.)

Further, "[e]xtrinsic

evidence, i.e., evidence outside the judgment roll, may be presented on direct

attack of a judgment that is valid on the face of the record to rebut the presumption that the judgment is valid.” (OC Interior Services, LLC v. Nationstar Mortgage, LLC (2017) 7 Cal.App.5th 1318, 1328.) “Either a ‘direct attack’ or a ‘collateral attack’ are the procedural mechanisms available to challenge a judgment that is allegedly void. A direct attack means an attack on the judgment in the action in which it was rendered, or a proceeding instituted for the specific purpose of attacking the judgment.... In contrast, a collateral attack is any procedural challenge that does not constitute a direct attack.” (Ibid., pp. 1326-1327.) Motions to vacate a void judgment are direct attacks, as to which lack of jurisdiction may be shown by extrinsic evidence outside of the judgment roll. (County of San Diego v. Gorham (2010) 186 Cal.App.4th 1215, 1228.) “A direct attack upon a judgment or order is usually one made in the same proceeding by appeal, or motion under section 473, Code of Civil Procedure, or one made in a separate suit in equity to set aside the judgment or order upon equitable grounds. A collateral attack is an attempt to avoid the effect of a judgment or order made in some other proceeding. In such attack the invalidity of the former judgment or order must appear on the face of the record.” (Palmquist v. Palmquist (1963) 212 Cal.App.2d 340, 344.) “An action in equity to set aside a judgment entered in a prior action is treated as a direct rather than as a collateral attack.” (Sternbeck v. Buck (1957) 148 Cal.App.2d 829, 832. See also generally Cal. Prac. Guide Civ. Pro. Before Trial, § 5:464.) “This [res judicata] requirement is derived from the fundamental policy of the doctrine, which gives stability to judgments after the parties have had a fair opportunity to litigate their claims and defenses.” (Association of Irrigated Residents v. Department of Conservation (2017) 11 Cal.App.5th 1202, 1219.) Claim preclusion may not apply as to judgments obtained by extrinsic fraud. (7 Witkin, Cal. Procedure (6th ed. 2023) Judgment, § 370.) “ ‘Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been “deliberately kept in ignorance of the action or proceeding, or in some other way fraudulently prevented from presenting his claim or defense.” ’ ” (Bae v. T.D. Serv. Co. of Arizona (2016) 245 Cal.App.4th 89, 97.)

Also, the litigation

privilege is inapposite to an equitable action to set aside a judgment for extrinsic fraud apart from tort claims. (Home Ins. Co. v. Zurich Ins. Co. (2002) 96 Cal.App.4th 17, 26.) While “communications made in connection with litigation do not necessarily fall outside the privilege simply because they are, or are alleged to be, fraudulent, perjurious, unethical, or even illegal...” (Kashian v. Harriman (2002) 98 Cal.App.4th 892, 920), “the litigation privilege does not provide a defense to a cause of action that, by its nature,

does not seek to impose tort liability for damages on a defendant based on his or her litigation related publications" (Weeden v. Hoffman (2021) 70 Cal.App.5th 269, 289), does not apply to independent, noncommunicative, wrongful conduct (Ramalingam v. Thompson (2007) 151 Cal.App.4th 491, 503), and does not protect illegal litigation conduct that results in damages unrelated to the use of the fruits of such conduct (Scalzo v. Amer. Express Co. (2010) 185 Cal.App.4th 91, 100.)

Here, the FAC well alleges ultimate facts to the effect that Defendant induced Plaintiffs' nonattendance at trial, by misrepresenting that the cases had been dismissed, supports a conclusion that Plaintiffs were not accorded a fair opportunity to litigate their defenses. Hence, such allegations do not reveal Claim Preclusion or Collateral Estoppel, but to the contrary, negate those theories, notwithstanding judicial notice of court and post-judgment records.

Additionally, the Court determines that the other addressed claim elements are all sufficiently alleged, including specific fraud allegations, and are not shown to be privileged. The FAC includes unprivileged litigation conduct including (1) non-tort damages or relief such as Declaratory Relief, (2) independent or ongoing conduct unrelated to communications (FAC, ¶¶ 10, 60), and (3) damages unrelated to litigation or torts such as refusal to return the HVAC system and contract damages (FAC, ¶¶ 11-13, 51, 55, 56, 68). (See, e.g., Franklin v. Municipal Court (1972) 26 Cal.App.3d 884, 902 ["A general allegation that the defendant 'converted the property to his own use' suffices to allege conversion.... An allegation that the plaintiff demanded return of the property and that the defendant refused to return said property has been deemed sufficient...."].)

IV.

CONCLUSION

The Court overrules the Demurrer, for reasons set forth above.